

Amendment No. 1 to HB2034

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1473*

House Bill No. 2034

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 16, Chapter 18, Part 3, is amended by adding the following as a new section:

(a) Notwithstanding another law to the contrary, if a municipal court has found a person or entity to be in violation of a municipal ordinance related to the maintenance of property and the person or entity in violation of the municipal ordinance has failed to remedy the property maintenance violation within thirty (30) days of the municipal court's finding that the ordinance has been violated, then the municipality may remedy the ordinance violation at a cost in conformity with reasonable standards. The municipality shall not remediate such violations if the cost may negatively impact the municipality's financial position, or if the cost is budgetarily prohibitive.

(b) The cost of remediation may be assessed against the owner of the property in the form of a lien upon the property in favor of the municipality; however, the municipality is not precluded from seeking recovery of remediation cost through other allowable means under state or local law.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.